THE STATE

Versus

OBEY NCUBE

IN THE HIGH COURT OF ZIMBABWE
KABASA J with Assessors Mr J. Ndubiwa and Mr J. Zulu
HWANGE 10 AND 11 MARCH 2026

Criminal trial

M. Cheda, for the state
C. Muleza, for the accused

KABASA J: - On 27 June 2025 the accused and now deceased left home at around 7 am. The now deceased returned around 1400 hours and the accused followed a few minutes later. The accused went into the now deceased's bedroom armed with a knobkerrie and a metal handle of an ox-drawn plough. He used these weapons to assault the now deceased leading to his death. The accused appeared before us charged with murder to which he pleaded not guilty.

In his defence the accused did not deny assaulting the now deceased. He however said he was angered by the now deceased who repeatedly threatened to kill him using non-natural means. He found the deceased preparing herbs meant to harm him through witchcraft and proceeded to assault him using a knobkerrie and a handle of an ox-drawn plough.

The deceased was an uncle to the accused's mother and had visited the accused's home where the accused resided with his mother.

To prove its case the state produced the post mortem report. The cause of death was:-

Brain injury

Head trauma

Assault

The deceased, a 77-year-old man had eyes hematoma, the scalp was haemorrhagic in all extensions, a depressed fracture of the skull in the frontal region and ruptured blood vessels.

Of the witnesses lined up by the state only two witnessed the assault. This was the accused's mother and the accused's wife. Their evidence was to the effect that the two had left home together to go watch a soccer match but did not come back together. The deceased returned first, followed by the accused. On arrival the accused went straight to the deceased's room armed with a knobkerrie. Screams were then heard from the deceased crying out that he was being killed. The witnesses went to investigate and the accused was observed repeatedly and indiscriminately assaulting the deceased using a metal rod and the deceased was lying on the ground.

The second witness's evidence painted a picture of a vicious and relentless assault. The deceased could not sit or support himself during the assault and the accused placed him in between his legs to support him so he could continue with the assault. After the assault the accused took the deceased out of the homestead and ordered him to take his belongings and leave. A message was later received advising them of the now deceased's whereabouts. The witnesses took a scotch cart and went to where they had been directed. They found the deceased who had collapsed and was in a gully. They brought him back home and tried to render assistance until the accused said he was taking him to hospital. The accused went with the deceased who he had put in a scotch cart. He came back without the deceased and told his wife he had taken him to hospital. He then left home without saying where he was going. The body of the deceased was later found dumped under a bridge covered with a blanket with only the feet visible. A hole at that bridge was covered using blankets which belonged to the deceased. Two more blankets, a bucket, a 3 legged pot and a sack were stashed in another hole at that bridge. The accused was nowhere to be seen and was arrested about 2 months later.

The evidence established the following:-

1. The deceased was a visitor at the accused's home and was a traditional healer.
2. The accused and deceased had a good relationship and the events of 27/6/25 were unexpected.
3. On the fateful day the two had gone to look for cattle together and from there went to watch soccer at a school ground.
4. They returned separately and accused proceeded to the deceased's hut armed and proceeded to assault him.

The issue is whether the accused acted out of anger and whether the defence of provocation is available to him.

We wondered what provoked the accused if the two had been together looking for cattle and from there went to watch a soccer match. If as he says he was threatened with death through the use of non-natural means, why was he going to watch soccer with deceased? Such behaviour shows people who were cordial to each other. Had there been discord between them they would not have gone to watch soccer together.

Further, if the accused had been threatened with death through non-natural means why was he heard saying the deceased had come to tell lies? What lies? Such an accusation was at odds with the alleged threat of death through the use of non-natural means.

What had angered him for him to come armed ready to assault the deceased? His conduct did not reflect a person who acted in the heat of the moment after losing self-control. He allowed the deceased to go back home and only followed later. There was no conversation between them as he went straight into deceased's room, armed, and proceeded to assault him. The description of the event as given by the witnesses showed a person who had come ready to attack. That is not what one expects where a person acts out of provocation. The reaction is there and then.

Where one harbours ill-feelings and acts on that, such is not provocation but more of meting out punishment that such an individual thinks the victim deserves. It points to revenge and not provocation.

In *S* v *Mugarapanyama* HH 211-23 MUREMBA J cited *S* v *Nangani* 1982 (1) ZLR 150 (S), *S* v *Ncube* S14-87 where a man killed his wife in circumstances which led him to believe that she had engaged in sexual intercourse with another man and in the other case, a woman who stabbed to death a woman who had been committing adultery with her husband when she found her kissing her husband and provocation was successfully pleaded. The circumstances *in casu* do not go anywhere near these cases.

The accused was afraid of being killed through use of non-natural means. Belief in witch craft is not a defence to murder.

S 101 of the Criminal Law Code provides that:-

> "It shall not be a defence to murder, assault or any other crime that the accused was actuated by a genuine belief that the victim was a witch or wizard, but a court convicting such person may take such belief into account when imposing sentence upon him or her for the crime."

The accused's story gives the impression that he killed the deceased so as to beat him to it since he had threatened to use non-natural means to kill him.

He threw the body under a bridge and covered it in the manner already alluded to yet he said he dumped the body because the deceased had turned into a ghost. If he was as scared as he would have us believe he was, what had happened to that fear if he was able to throw the body under the bridge, cover it only leaving the feet, used other blankets to cover holes at that bridge as well as stash deceased's belongings into another hole at that bridge? That was him trying to conceal the body and not that such action would get rid of the deceased's ghost. His story makes no sense. His mother ought not to have allowed him to take the deceased under the pretext that he was taking him to hospital. He had no such intention.

The defence of provocation is not available to him. His belief in witchcraft is no defence to a murder charge.

The deceased was a 77 year old man. The indiscriminate assault with the weapons which included an ox-drawn handle whose weight was 1,17 kg and aimed at the most vulnerable part of the body could only mean an intention to kill.

The state therefore proved its case beyond a reasonable doubt and accused is accordingly found guilty as charged.

Sentence

You are a 33 year old first offender. You are married with a 10 year old child. You are an unsophisticated man who attained Grade 7 as the highest level of education.

You believe in witchcraft which, although not a defence to murder, can be considered as mitigatory.

You have spent 7 months in pre-trial incarceration.

In aggravation is the fact that the deceased was 77 years old. The court considers this a murder committed in aggravating circumstances as the deceased was over 70 years.

You exhibited a high level of cruelty, indiscriminately and repeatedly assaulting him with a 1,17 kg iron rod and a knobkerrie. Even when he could no longer sit on his own you supported him by placing him between your legs and continued with the assault.

You did not render assistance and pretended to be taking him to hospital but dumped him under a bridge. You disrespected him in his lifetime and also after death by throwing his body away as if he was an animal. You sought to conceal what you had done by covering him with a blanket and also hiding his property.

At 77 he had been blessed with long life. It was cruel of you to deprive him of life in such a manner. You also showed lack of respect for an elderly person.

The deceased's son was deeply affected by his father's death and is still suffering emotionally and psychologically. It was a sad and painful loss which the son vividly described in the victim impact statement.

Given these aggravating factors, the presumptive penalty is 20 years. You used weapons, threw the body under a bridge and lied that you had taken the deceased to hospital.

We see no justification in departing from the presumptive penalty.

You are accordingly sentenced to 20 years imprisonment.

The ox-drawn plough handle is to be destroyed.

National Prosecuting Authority, state's legal practitioners
Legal Aid Directorate, accused's legal practitioners